

There are no signs that the situation in northern Liberia will improve in the near future. The number of newly displaced people is likely to continue to increase. The UN Secretary-General, in his report of 23 May 2001, stated his deep concern that "the present fighting will result in tens of thousands of refugees and internally displaced persons to whom aid agencies would have no access" (paragraph 6). It is clear that refugees returning to Liberia now would be at serious risk of human rights violations and that no one should therefore be forced or encouraged to return.

Sierra Leone

By early June 2001 more than 55,000 Sierra Leonean refugees in Guinea had risked spontaneously returning to Sierra Leone; others are still returning. UNHCR has not promoted return to Sierra Leone because conditions are not yet conducive for repatriation. However, faced with very large numbers of refugees wishing to return, UNHCR has adopted a policy of facilitating that return. Around 35,000 refugees have returned by boat, assisted by UNHCR and the International Organization for Migration (IOM), an intergovernmental organization. As most of these refugees were originally from areas in northern and eastern Sierra Leone still under the control of the RUF, they are being resettled in areas in the west and south of the country.

At least 20,000 refugees have returned on foot from Guinea through RUF-held areas. Having been victims of attacks by armed political groups, Guinean security forces and Guinean civilians, many of those crossing the border into Kono and Kailahun Districts in eastern Sierra Leone have faced further abuse from the RUF. Women and girls have been raped, some of them abducted, and children have been forcibly recruited to fight or work in the diamond fields. Some Guinean civilians who have fled into RUF-held areas to escape attacks in Guinea, or who have been abducted by RUF forces, have faced the same abuses at the hands of the RUF. In addition, thousands of Liberian civilians and Sierra Leonean refugees in Liberia have fled into Sierra Leone, many into RUF-held areas, to escape increased human rights abuses and intense fighting in northern Liberia since February 2001.

If they succeed in reaching safe areas after passing through Kono and Kailahun Districts, returning refugees are resettled in camps or integrated into temporary settlements within local communities. **It appears, however, that large numbers of returning Sierra Leonean refugees and Guinean and Liberian refugees remain in RUF-held areas. The RUF is reported to have prevented many people from leaving, in an attempt to encourage humanitarian agencies to provide assistance to civilians in the area, apparently in the belief that RUF combatants would also benefit.**

The UN Mission in Sierra Leone (UNAMSIL), the UN peace-keeping operation in Sierra Leone, UNHCR and humanitarian agencies have only recently obtained limited access to some RUF-held areas. The number of civilians in these areas and the nature of their needs are difficult to estimate but there are likely to be hundreds of thousands of civilians in need of urgent humanitarian assistance. On 12 June 2001, UNHCR announced that it had been able to evacuate 130 Guinean and Liberian refugees from Kailahun District and that the RUF was willing to allow other refugees to leave their areas of control. As they progressively deploy into RUF-held areas, UNAMSIL peace-keeping troops must also fulfil their mandate to protect civilians from further human rights abuses.

The human rights abuses and the general failure of refugee protection in Guinea have forced very large numbers of refugees to return to Sierra Leone. Many of the Sierra Leonean refugees interviewed by Amnesty International in March and

April 2001, both in Guinea and after their return to Sierra Leone, expressed a strong desire to return to Sierra Leone. They felt that Guinea had become as dangerous as Sierra Leone. It is clear, however, that refugees who have no option but to return overland into Sierra Leone risk again falling victim to the human rights abuses which they had fled. The spontaneous return of refugees to Sierra Leone under these circumstances cannot be considered voluntary; it is rather the least worst option for the refugees.

In February 2001 the UN High Commissioner for Refugees, Ruud Lubbers, advocated a "humanitarian passage and possible safe return routes" for Sierra Leonean refugees, including through RUF-held areas.⁽²⁾ A UNHCR report on this issue stated that: "To implement the safe passage concept in Sierra Leone, a formal commitment of both the Government and the RUF is necessary. [...] For the RUF, a public statement would be deemed sufficient."⁽³⁾

However, given the scale of abuses by the RUF and its previous failure to fulfil public commitments to end these abuses, Amnesty International would not consider any future commitment by the RUF to be a sufficient guarantee that repatriation can take place in safety and dignity, as demanded by international standards of voluntary repatriation.

Amnesty International supports the view of the UN Secretary-General in his report of 23 May 2001 that "the conditions for the immediate return of all refugees to Sierra Leone do not exist" (paragraph 23). UNHCR and the governments of Guinea, Liberia and Sierra Leone should not encourage or force return to Sierra Leone, particularly overland and through RUF-held areas. Repatriation should not be imposed under any circumstances unless there has been a fundamental and lasting change of conditions in Sierra Leone. A decision on repatriation should be based on an independent and impartial assessment of the human rights situation in all parts of Sierra Leone by UNHCR, international human rights agencies and mechanisms, non-governmental organizations and refugees themselves.

UNHCR has a responsibility to ensure that refugees have the best possible information about the situation throughout their country of origin and about other options available to them, such as relocation or resettlement. Amnesty International welcomes the fact that UNHCR is increasing its efforts in this regard and urges UNHCR and the international community to ensure that refugees are able to make a free and informed choice on whether to return and are not put under undue pressure in this regard.

Civilians in RUF-held areas in northern Sierra Leone have suffered human rights abuses by both the RUF and by Guinean security forces. In response to the increased tensions and fighting within the region, the Guinean security forces mounted aerial military operations and incursions by ground troops into Sierra Leone, in particular in Kambia District in Northern Province, until the end of May 2001 an RUF-held area. Attacks by helicopter gun-ships resulted in large numbers of civilian deaths and injuries and massive destruction of civilian property. This, compared with few RUF casualties or damage to its bases or equipment, indicates that the attacks were indiscriminate and disproportionate.

Civilians in these areas also remained at risk of abuses by the RUF. Some 30,000 civilians from Kambia District fled and became internally displaced in the Lungi peninsular, southwest of Kambia District and to the north of Freetown. Following an agreement with the Sierra Leone government in May 2001, the RUF began to disarm and withdraw from Kambia District. The Sierra Leone Army has

begun to deploy in the area and attacks by Guinean security forces across the border have since ceased.

Refugees returning to Sierra Leone from Guinea and Liberia join the massive existing population of internally displaced people. Up to a million people remain internally displaced in Sierra Leone. At periods during the 10-year internal armed conflict the number of internally displaced people has exceeded even this figure. Since January 2001 the government, assisted by the UN Office for the Coordination of Humanitarian Affairs (OCHA), IOM and international non-governmental organizations, has begun to organize the relocation of internally displaced people from designated "safe areas".⁽⁴⁾ The aim is to reintegrate the internally displaced population into local communities and reduce dependency on humanitarian assistance. OCHA reported that 40,500 people had been relocated from camps to their own communities or other "safe areas" by early May 2001.

Conclusions

The outbreak of hostilities in the border areas between Guinea, Liberia and Sierra Leone had long been predicted. However, for several months from September 2000, several hundred thousand refugees in Guinea were left without humanitarian assistance. Very little action was taken to protect civilians from widespread human rights abuses. Despite intensive efforts by humanitarian agencies during 2000 and 2001, the international community as a whole was slow to react. In particular, UNHCR in Guinea was not provided with the financial or political support necessary to implement its protection mandate effectively. UNHCR's fulfilment of this mandate was further compromised by an optimistic view of the political developments in the region and its hope to be able to promote mass repatriation to Liberia and Sierra Leone during 2000.⁽⁵⁾

This human rights crisis is clearly regional and therefore requires regional solutions, as acknowledged in the report of a UN inter-agency visit to West Africa in March 2001.⁽⁶⁾ However, it has in part arisen due to the failure of governments and the international community to address effectively the massive human rights abuses committed in Liberia and Sierra Leone over the past decade and the continuing abuses in these countries and Guinea. The crisis is a dramatic illustration of the consequences of allowing impunity for those abuses to flourish unchecked.

For example, Sierra Leonean refugees who sought safety in Guinea have since September 2000 experienced similar abuses to those they fled, often at the hands of the same RUF forces. The Lomé peace agreement signed by the Sierra Leone government and the RUF in July 1999 granted a blanket amnesty for all actions undertaken in pursuit of the conflict, including gross human rights abuses. Although following the collapse of that agreement in May 2000, the UN Security Council decided in August 2000 to establish a Special Court for Sierra Leone to try those most responsible for the most serious human rights abuses, its creation has been delayed and threatened by lack of commitments for funding from UN member states.⁽⁷⁾ Furthermore, human rights abuses committed since the signing of the 1999 peace agreement do not fall under the blanket amnesty; those responsible for such abuses therefore can, and should, be brought to justice in the national courts or the Special Court, once it is established.

The international community has failed to take its full share of the responsibility of protecting and assisting refugees in the region, especially in providing adequate support and resources to the Guinean authorities, in accordance